



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

June 03, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20656
(FIRST REVISION)

EXPIRATION DATE: 2028-04-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: The Sherwin-Williams Manufacturing Company
Cleveland, OH
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of DOT specification 2Q receptacles that have been tested in an alternative manner to the hot water bath test. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.306(a)(3)(v) in that alternative testing is authorized.
5. BASIS: This special permit is based on the application of The Sherwin-Williams Manufacturing Company dated March 11, 2024, and submitted in accordance with § 107.109.

Tracking Number: 2024024290

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Aerosols, flammable, (each not exceeding 1 L capacity)	2.1	UN1950	N/A
Aerosols, non-flammable, (each not exceeding 1 L capacity)	2.2	UN1950	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packagings are DOT specification 2Q metal non-refillable inside containers with a capacity not exceeding 16 oz. (473 ml) which conform to USCan Technical Center drawing number 202VCTU Rev. 5 (406 mm nominal can height) and 211VCTU Rev. 5 (413 mm nominal can height), and B-Way Corporation Print No. PD211-7-002.

b. OPERATIONAL CONTROLS:

- (1) After filling with solvent and propellant, each container shall be subjected to the hot water bath test in accordance with § 173.306(a)(3)(v).
- (2) Paint may only be added to the filled and tested container using the equipment described in the application on file with the Office of Hazardous Materials Safety.
- (3) Before and after being filled with paint, each container shall be visually inspected by the filler for any evidence of leakage or buckling. If there is any evidence of leakage or buckling, the container shall be rejected.
- (4) The pressure in the containers shall not exceed 130 psig at 130 °F before or after filling with paint.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification

or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING:

(1) Inside containers must be plainly and durably marked "DOT-SP 20656".

(2) Each outside packaging must be marked "INSIDE CONTAINERS MUST COMPLY WITH DOT-SP 20656".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, and cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005),

amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. **REPORTING REQUIREMENTS:** Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Ben M/Casey Chambers